

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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ALEXANDER MCCRAY

SUMMONS

Plaintiff,

Index No: _____

-against-

Date Filed: _____

THE CITY OF NEW YORK; NYPD P.O. MICHAEL
THOMAS, SHIELD NO 13572; NYPD P.O. JASON
TORNIN, SHIELD NO 05433; the individual
defendant(s) sued individually and in their
official capacities,

Basis of Venue: Occurrence
of Incident:
New York County

Defendants. Jury Trial Demanded

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YOU ARE HEREBY SUMMONED to appear and to answer the Complaint in this action and to serve a copy of your answer on plaintiff's attorney within twenty (20) days of the service of this Summons, exclusive of the day of service (or within thirty (30) days after service is complete if this Summons is not personally delivered to you within the State of New York), and in case of your failure to appear or to answer, judgment will be taken against you by default for the relief demanded in the Complaint.

DATED: NEW YORK, NY
February 6, 2017



MARTIN E. ADAMS, ESQ.
ADAMS & COMMISSIONING LLP
Attorney for Plaintiff
65 Broadway 715
New York, New York 10006
212-430-6590

DEFENDANTS ADDRESS:

The City of New York
100 Church Street
New York, NY 10007

NYPD P.O. MICHAEL THOMAS, SHIELD NO 3572;
NYPD P.O. JASON TORNIN, SHIELD NO 05433;
Transit Bureau, Transit District 2
Canal Street IND Subway Station
West Broadway/Lispendard Street
New York, NY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

ALEXANDER MCCRAY

COMPLAINT

Plaintiff,

Index No: _____

-against-

Date Filed: _____

THE CITY OF NEW YORK; NYPD P.O. MICHAEL
THOMAS, SHIELD NO 13572; NYPD P.O. JASON
TORNIN, SHIELD NO 05433; the individual
defendant(s) sued individually and in
their official capacities,

Basis of Venue:

Occurrence of Incident:
New York County

Defendants.

Jury Trial Demanded

----- X

The Plaintiff Alexander McCray by and through counsel
Adams & Commissiong LLP, alleges upon information and belief as
follows:

PRELIMINARY STATEMENT

1. This is tort action in which plaintiff seeks
relief for the violation of his rights secured by the laws of
the State of New York and the New York State Constitution.
Plaintiff's claims arise from an incident that arose on or about
November 20, 2014. During the incident, The City of New York,
and members of the New York City Police Department ("NYPD")
subjected plaintiff to, among other things, to personal
injuries; negligence; gross negligence; and negligent infliction
of emotional distress; recklessness; carelessness and to a

deprivation of his civil and common law rights; negligence in the hiring and retention of incompetent and unfit employees, negligence in the supervision, training and instruction of such employees, and respondeat superior liability. Plaintiff seeks compensatory and punitive damages from the individual defendant, compensatory damages from the municipal defendant, declaratory relief, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. Within 90 days of the incidents alleged in this complaint, plaintiff served upon defendant The City of New York a Notice of Claim setting forth the name and post office address of plaintiff, the nature of the claim, the time when, the place where and the manner in which the claim arose and the items of damages or injuries claimed.

3. More than 30 days have elapsed since plaintiff's demands and/or claims were presented to defendant the City of New York for adjustment and/or payment thereof, and the defendant has neglected and/or refused to make any adjustment and/or payment.

4. This action was commenced within one year and ninety days of the date of the occurrence herein, in the Southern District of New York, under Docket Number 16CV01180.

5. Pursuant to a stipulation, the parties agreed to re-filing this case in State Court, pursuant to the attached stipulation, attached here to as exhibit 1.

6. Venue is proper in the Supreme Court of the State New York, New York County, because the acts in question occurred in the State of New York, New York County, and the City of New York and the individual defendants are subject to personal jurisdiction in Supreme Court of the State New York, New York County.

PARTIES

7. Defendant The City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

8. Police Officers NYPD P.O. MICHAEL THOMAS, SHIELD NO 13572; NYPD P.O. JASON TORNIN, SHIELD NO 05433 are NYPD Police Officers, employed in Transit Bureau Manhattan, Transit District 2 or another as yet unknown NYPD assignment who violated plaintiff's rights as described herein.

9. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

10. On November 20, 2014, at and in the vicinity of the West 4th Street, Subway Station, A, C and E Lines, New York, New York, in New York County, plaintiff was in the subway station.

11. The defendant police officers began to chase plaintiff.

12. Plaintiff was negligently, carelessly and improperly being chased and pursued by the defendant police officers, acting on behalf of the City of New York.

13. At approximately 8:00 p.m. at and in the vicinity of the West 4th Street, Subway Station, A, C and E Lines, New York, New York, in New York County, the defendant officers chasing plaintiff negligently caused themselves to collide with plaintiff, causing plaintiff to fall down a flight of stairs.

14. The collision caused severe and serious personal injuries to the plaintiff.

15. The accident and the injuries to the plaintiff resulting therefrom, were due solely in whole or in part, direct or imputed to the negligence of the defendants and were in no way contributed there to by the plaintiff.

16. That the said collision and resultant injuries were caused solely by the negligence of the defendants in that

the City of New York failed to give proper and adequate training and instruction to the defendant police officers in the proper, correct and careful methods of stopping, restraining or pursuing suspects and thereby failed to exercise reasonable foresight and care to avert the happening of such an occurrence and the inflicting of injuries on suspects.

17. That the said collision and resultant injuries were caused solely by the negligence of the defendants, in that the defendant police officers conducted the pursuit of plaintiff in a careless and negligent manner under the circumstances prevailing.

18. That the said collision and resultant injuries were caused solely by the negligence of the defendants, in that the defendant police officers failed and omitted to conduct themselves with due regard for the safety of others, including plaintiff.

19. That the said collision and resultant injuries were caused solely by the negligence of the defendants, in that the defendant police officers carelessly and negligently failed and omitted to keep and to maintain a proper lookout and to be reasonably alert.

20. That the said collision and resultant injuries and were caused solely by the negligence of defendants, in that

the defendant police officers, in doing and performing the acts above-described did so contrary to and in deviation from the accepted, proper and prescribed police manner, methods and techniques of stopping, restraining or pursuing suspects.

21. That the said collision and resultant injuries were caused solely by the negligence of the defendants, in that the defendant police officers, in doing and performing the acts above-described did so contrary to and in violation of the established and proper police rules and regulations regarding pursuing suspects.

22. That the said collision and resultant injuries were caused solely by the negligence of the defendants, in that the defendant police officers in the exercise of reasonable care, should have known that said chase and pursuit at the aforesaid high and dangerous speeds in a public crowded subway station, approaching a stair case as set forth above, would likely cause a collision and serious accident, resulting in serious injuries to law-abiding users of the subway station and more particularly to the plaintiff.

23. That the said collision and resultant injuries were caused solely by the negligence of the defendants, in that, the defendant police officers knew that the plaintiff had not committed, nor was about to commit a felony or serious crime,

but merely a violation and therefore their continuation of the said chase and pursuit in the manner above-described, was unnecessary and unjustified, and, in the manner performed, was negligent and careless.

24. That the said collision and resultant injuries were caused solely by the negligence of the defendants, in that, the defendant police officers, had no reasonable grounds to believe or suspect that the plaintiff did or would commit a felony or serious crime, and therefore their continuation of the said chase and pursuit in the manner above-described, was unnecessary and unjustified, and, in the manner performed, was negligent and careless.

25. That the said collision and resultant injuries were caused solely by the negligence of the defendants, in that the defendants were otherwise negligent and careless under all the facts and circumstances then and there prevailing.

26. Plaintiff was knocked unconscious and suffered serious injuries.

27. Plaintiff was taken to Bellevue Hospital where he was handcuffed to a bed.

28. Plaintiff was in the hospital for approximately three weeks.

29. Upon information and belief, once plaintiff was in the hospital, one of the defendant officers apologized to plaintiff.

30. In order to cover up their misconduct, upon information and belief, defendants prepared false reports and made false statements stating that plaintiff had lost his footing.

31. The defendants acted under the pretense and color of the law and within the scope of their employment.

32. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

33. Plaintiff is entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness.

FIRST CLAIM

(NEGLIGENCE AND GROSS NEGLIGENCE)

34. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

35. Defendants are liable to plaintiff because defendants owed plaintiff a cognizable duty of care as a matter of law, and breached that duty.

SECOND CLAIM

(NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS)

36. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

37. That by virtue of the occurrence and defendants, individually and/or by their agents, servants and/or employees, negligently inflicted emotional harm upon plaintiff.

38. The defendants' actions against plaintiff were extreme and outrageous and caused plaintiff severe emotional distress.

39. The defendants breached a duty owed to the plaintiff that either unreasonably endangered plaintiff's physical safety, or caused the plaintiff to fear for his own safety.

THIRD CLAIM

**(NEGLIGENT SUPERVISION, HIRING, MONITORING TRAINING AND
RETENTION OF UNFIT EMPLOYEES)**

40. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

41. Defendant City of New York is liable to the plaintiff because the occurrence and injuries sustained by

plaintiff, were caused solely by, and as a result of the reckless, negligent, conduct of defendant City of New York, and the NYPD and its agents, servants and/or employees, as set forth above, without provocation on the part of plaintiff contributing thereto, specifically, the negligent and reckless manner in which said defendant hired, trained, supervised, controlled, managed, maintained, inspected, and retained its police officers.

FOURTH CLAIM

(RESPONDEAT SUPERIOR)

42. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

43. The individual defendants were acting within the scope of their employment as New York City Police Officers when they committed the above described acts against plaintiff, including assaulting, and battering plaintiff.

44. The City of New York is therefore vicariously liable under New York State law for the aforesaid torts.

WHEREFORE, plaintiff demands, damages in an amount which exceeds the jurisdiction of all lower Courts otherwise having jurisdiction, a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

DATED: New York, New York
February 6, 2017

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Attorney for Plaintiff
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By:



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